

ground that the conduct alleged cannot constitute extreme and outrageous conduct because each action was taken to enforce the express terms of the 2018 handwritten rental agreement. To state a claim for intentional infliction of emotional distress, a plaintiff must allege outrageous conduct by the defendant, the defendant's intention of causing or reckless disregard of the probability of causing emotional distress, the plaintiff's suffering severe or extreme emotional distress, and actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*McClintock v. West* (2013) 219 Cal.App.4th 540, 556.)

It may fairly be debated whether any of the conduct alleged here could really rise to the level of outrageousness required to support an IIED or NIED claim, even if plaintiff does have a leasehold right to occupy under the alleged lifetime lease. But as noted above as to the fourth cause of action, however, there is nothing alleged here that wouldn't fall under the heading of a good-faith assertion of the landlords' rights under a month-to-month arrangement. Accordingly, the demurrer to these counts are likewise **sustained with leave to amend**.

The Court also observes that "negligent" infliction is not a very good fit for the case plaintiff seeks to present. Whether rightful or wrongful, none of the conduct alleged here was "negligent" in the sense of being unintended or accidental.

Motion to Strike

Defendants move to strike four items from the FAC (1) the reference to cause of action number 4, breach of contract, in the caption; (2) the reference to cause of action number 5, breach of the covenant of quiet enjoyment, in the caption; (3) the reference to cause of action number 9, quantum meruit/unjust enrichment, in the caption; and (4) the footer phrase "or in the alternative a life estate" appearing on FAC pages 1 through 9.

Plaintiff has not opposed the motion to strike. Therefore, the motion is **granted with leave to amend**. The caption entries identify causes of action that are not pleaded in the body of the FAC and are thus irrelevant matter within the meaning of CCP § 436. The footer phrase does not correspond to any cause of action pleaded in the body of the FAC and similarly constitutes irrelevant matter.

Leave to Amend

Plaintiff is granted leave to file a second amended complaint within thirty days of notice of entry of this order. Plaintiff has proposed numerous amendments across multiple causes of action. Plaintiff may amend any cause of action addressed in this ruling and correct the party designation defects identified in the demurrer.

9. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
*HEARING ON MOTION IN RE: HALT, SEASE & DESIST CRIMES AGAINST JUSTICE
FILED BY:
TENTATIVE RULING:

It is no easy task to try to make out what this plaintiff thinks his case is about. It appears to arise from

a knee injury from slipping on construction sludge, which the plaintiff seeks to escalate into a major official persecution.

The present motion is captioned “Motion to Halt, Sease & Desist Crimes Against Justice”. It is an incoherent rant asserting in conclusory terms that defendant and its attorney have been lying to the Court -- but with neither any coherent narrative, nor any supporting evidence, nor any clear statement of what plaintiff wants the Court to do about it except something like “make them stop”, or maybe convict them of perjury. That’s not how the court system works. The motion is **denied**.

10. 9:00 AM CASE NUMBER: C25-02856
CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV
***HEARING ON MOTION IN RE: ORDER AUTHORIZING ALTERNATIVE SERVICE OF SUMMONS ON**
DEFENDANT ANIL YADAV CCP 413.30
FILED BY: VAN DE POEL & LEVY LLP
TENTATIVE RULING:

This is an action by a law firm to collect contractual legal fees. There are two defendants, a corporation (Yadav Enterprises, Inc.) and an individual (Anil Yadav, apparently the principal of the corporation). The corporation has been served, has counsel, and has been actively defending the case.

Mr. Yadav, however, appears to be ducking service, as shown by the report of the process servers. He has not authorized the corporation’s counsel to accept service on his behalf. It is readily inferable, however, that he is fully aware of the litigation and participating in directing defense efforts.

Plaintiff moves for an order authorizing alternative forms of service, namely email to the corporation’s attorneys, mail to the attorneys, and mail to the individual defendant at his home address. The motion is **granted**.

11. 9:00 AM CASE NUMBER: C25-03201
CASE NAME: DELMARIE THOMAS VS. GALINDO WOODS CONDOMINIUM ASSOCIATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: GALINDO WOODS CONDOMINIUM ASSOCIATION
TENTATIVE RULING:

Defendant Galindo Woods Condominium Association’s demurrer to the complaint is **overruled**. Defendant shall file and serve an answer by July 2, 2026.

Plaintiff is suing Defendant for negligence and premises liability. She alleges that the Defendant failed to properly maintain the pipes at the property, which caused pipes to burst and create a water leak and mold in the common area of the condominium, causing the plaintiff to suffer respiratory issues, including asthma.

Defendant demurs to both causes of action based upon the failure to state facts sufficient to constitute a cause of action under Code of Civil Procedure § 430.10(e). On demurrer for failure to state sufficient facts to constitute a cause of action, the Court reviews the factual allegations and must overrule a demurrer if a valid claim is alleged. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th